

CITY OF CHEYENNE  
**CONTRACT MODIFICATION**

Contract Modification: # 1  
Project: Cable Television Franchise Negotiations  
Project Number: Contract # 6743  
Contractor: River Oaks Communications Corporation  
Effective date: April 23, 2018

The above-referenced contract is modified as set forth in the following, and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

The City of Cheyenne (“City”) and River Oaks Communications Corporation (“River Oaks”) entered into a professional services agreement dated October 24, 2017. That contract bears city contract number 6743 (“Agreement”). The Agreement contemplates completion of the scope of work identified therein by April 24, 2018. But additional time is now needed for the drafting and negotiation of the Charter Communications Cable Television Franchise Agreement. The City will not be pursuing a Cable Television Franchise Agreement with CenturyLink.

II. New Contract Items

The new contract item identified here is additional time to complete the scope of work identified in the Agreement.

III. Schedule

This contract modification extends the completion of service date from April 24, 2018 to September 30. 2018.

IV. Summary

|                                                  |             |
|--------------------------------------------------|-------------|
| Original Contract Amount .....                   | \$51,635.00 |
| Previous Modifications .....                     | \$0.00      |
| Contract Amount Prior to this Modification ..... | \$51,635.00 |
| This Modification.....                           | \$0.00      |
| New Contract Amount .....                        | \$51,635.00 |

**[SIGNATURE PAGE FOLLOWS]**

V. Approvals

Date

\_\_\_\_\_  
Mayor, Marian J. Orr

\_\_\_\_\_  
ATTEST: City Clerk, Carol Intlekofer

Date:

\_\_\_\_\_  
River Oaks Communications Corporation-  
Robert Duchen- Vice President

\_\_\_\_\_  
Printed Name

\_\_\_\_\_  
Title

Attachments:

1. Exhibit A: Original contract, including original scope of work

# **EXHIBIT A**

*City Contract # 6743 attached to Contract Modification*

City Contract # 6743

**PROFESSIONAL SERVICES AGREEMENT**  
for  
**DRAFTING AND NEGOTIATION OF CHARTER COMMUNICATIONS**  
**CABLE FRANCHISE RENEWAL AND CENTURYLINK CABLE**  
**TELEVISION FRANCHISE AGREEMENTS**

THIS AGREEMENT is made and entered into this 24th day of October, 2017, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and River Oaks Communications Corporation, located at 6860 South Yosemite Court, Suite 2000, Centennial, CO 80112 ("River Oaks").

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

River Oaks agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed by April 24, 2018, as stated in Exhibit A.

3. **RIVER OAKS RESPONSIBILITY**

In providing services under this Agreement, River Oaks shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to River Oaks and by mutual agreement between the parties, River Oaks will, without additional compensation, correct those services not meeting such a standard.

4. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

5. **DRUG-FREE WORKPLACE**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by River Oaks

while performing the duties and responsibilities of the Agreement. It is the responsibility of River Oaks to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If River Oaks, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

6. **INDEMNIFICATION/HOLD HARMLESS**

River Oaks agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) River Oaks' breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by River Oaks, or its employees or sub-consultants in the performance of this Agreement. River Oaks acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

7. **INSURANCE REQUIREMENTS**

River Oaks must provide proof of the following insurance coverages:

**Commercial General Liability Insurance**

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

**Business or other Automobile Insurance**

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

**Workers' Compensation**

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by law, for all employees or agents providing services under this Agreement. River Oaks shall provide the City with proof of workers' compensation or employer's liability insurance coverage or exemption from Workers' Compensation under Colorado Law.

**Professional Liability Insurance**

River Oaks shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from River Oaks' negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. River Oaks shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time River Oaks begins the provision of services under this Agreement; and
- b. In the event River Oaks' services extend into a future policy period, River Oaks shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that River Oaks will provide services under this Agreement; and
- c. River Oaks shall maintain said "claims made" coverage for a period of five (5) years following the last date that River Oaks has provided services under this Agreement; and
- d. In the event River Oaks or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, River Oaks shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that River Oaks has provided services under this Agreement.

#### **Additional Insurance Information**

River Oaks shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

River Oaks shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon River Oaks to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, River Oaks shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or River Oaks' obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. **MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES** 49 C.F.R. Part 26  
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.

9. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, River Oaks will bill the City and the City agrees to pay River Oaks an amount not to exceed Forty-Seven Thousand Four Hundred Thirty Five Dollars (\$47,435) plus expenses not to exceed Four Thousand Two Hundred Dollars (\$4,200) for a total not to exceed value of Fifty-One Thousand Six Hundred Thirty Five Dollars (\$51,635) as stated in Exhibit A.

10. MONTHLY REPORT

With every monthly billing, River Oaks shall provide the City Representative with a written statement of the work performed with respect to the Scope of Work. Failure to provide the required report (if any is so requested by the City) will delay processing of any payment request until the report is submitted.

11. INDEPENDENT CONTRACTOR

River Oaks shall function as an independent contractor for the purposes of this Agreement. River Oaks shall assume sole responsibility for any debts or liabilities that may be incurred by River Oaks in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing River Oaks or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

12. TAXES

River Oaks agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by River Oaks in connection with its operations under this Agreement.

13. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default upon receipt of fifteen (15) days written notice and not curing such alleged breach. In the event of termination for default, the City will pay River Oaks for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

14. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

This Agreement shall be for a period of six months. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to River Oaks, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, River Oaks shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by River Oaks in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay River Oaks for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event River Oaks fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge River Oaks. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by River Oaks or its sub-consultants. This shall include, but not be limited to, the right to bring experts and consultants in to examine or evaluate completed work or work in progress and to examine the books, ledgers, documents, papers, and records pertinent to this Agreement.

20. NON-DISCRIMINATION

River Oaks shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

21. PROFESSIONAL REGISTRATION

River Oaks shall be qualified to do business in the State of Wyoming.

22. ENTIRETY OF AGREEMENT

This Agreement and Exhibit A consisting of 8 pages contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands the day and year first above written.

City of Cheyenne

(SEAL)  
Attest:

Carol Intlekofer  
Carol Intlekofer, City Clerk

By: \_\_\_\_\_

Marian J. Orr, Mayor

Date: \_\_\_\_\_

10-25-17

RIVER OAKS COMMUNICATIONS  
CORPORATION

By: \_\_\_\_\_

Vice President  
Vice President

Print Name: \_\_\_\_\_

Robert Duchow - Vice President

## **EXHIBIT A**

### **SCOPE OF WORK**

**Scope of Services to be Provided by River Oaks:** River Oaks shall furnish the following services:

- A. Review of existing Charter Communications Cable Franchise Agreement.
- B. Review of any pertinent City Cable Communications Ordinance and determine impact of any Telecommunications Ordinance.
- C. Continue review of correspondence from and to City/Charter and from and to City/CenturyLink.
- D. Address Section 626 Letter from Charter and franchise extension issues.
- E. Address existing Charter Franchise with respect to numerous issues including, but not limited to:
  - a. Franchise Fees and Gross Revenues, the amount of the PEG Fee, PEG Requirements and Channels, Term, Competitive Equity and FCC Orders, Interconnection, Compliance Issues, Local Office, Right-of-Way Issues, the Charter Entity, Franchise Fee Reporting, Free Service, PEG Channels being located on the Basic Tier, Return Lines, Emergency Alert System and the Scrambled Channel.
- F. Draft and Negotiate with Charter a renewal Franchise document under the Informal Renewal Process and address numerous matters for possible inclusion in the renewed Franchise as well as Drafting and Negotiating with CenturyLink a new Cable Franchise.
  - a. These will contain extensive issues with respect to PEG Fees, Gross Revenues inclusions, Definitional matters, Police Power issues, Telecommunications issues, Term of Franchise, Joint Trenching, Competitive Equity, Audits, Financial Records, Tax Liability, Indemnification, Insurance, Letter of Credit and Bond, Customer Service Office, Open Records, Customer Service issues, Complimentary Cable Service, Access Channels, Government Video on Demand, High Definition, Signal Quality of PEG Channels, Location of PEG Channels, Return Connectivity, Changes in Technology, Right-of-Way Standards, Construction, Excavation, Undergrounding, Timeframe for Removal of Lines from Poles, Scrambled Channel, Inspection of Construction, Timeframe for Service Extensions and Service Availability, Emergency City and Public Communications, Franchise Default Standards, Transfer of Ownership, Venue, Governing Laws and numerous other matters.
- G. Participate in Conference Calls/Phone Meetings and In-Person Negotiation Sessions (where requested) with the City and Charter and the City and CenturyLink.

- H. If requested by the City, prepare a Compliance Letter to Charter. This Compliance Letter identifies the most important components from a Past Performance standpoint and is not a detailed comprehensive Past Performance Review.
- I. Review the 1984 and 1992 Cable Acts, Telecommunications Act of 1996, FCC Orders and FCC Regulations in connection with the above.
- J. Attend Meetings with the City in Cheyenne as requested by the City.

The foregoing Scope of Work does not include work under the Formal Renewal Process, a Technical Inspection, Franchise Fee Audit, Comprehensive Compliance Review, Survey or Needs Assessment.

It shall be the City's decision whether to renew or not renew the Charter Cable Franchise.

**Billing/Rate Information:** River Oaks shall be compensated at the following rate and reimbursed for its expenses as follows:

River Oaks Communications Corporation - \$265/hour

Reimbursable direct costs:

- Federal Express
- Postage
- Long Distance Telephone Charges
- Outside Clerical
- Faxes
- Copies
- Travel upon request (Lodging and Meals)

It is estimated that the costs shall not exceed Forty-Seven Thousand Four Hundred Thirty Five Dollars (\$47,435) plus expenses not to exceed Four Thousand Two Hundred Dollars (\$4,200) for a total not to exceed value of Fifty-One Thousand Six Hundred Thirty Five Dollars (\$51,635). This work shall be done within the next 6 months subject to cooperation of Charter and CenturyLink.

Work in connection with Telecommunications, a Wireless Communication Facilities Ordinance, a Telephone Franchise with CenturyLink, a Use Agreement with ACT or other matters will be separate work and would require a separate budget between the City and River Oaks.